

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

-----X
HENG TEA,

Plaintiff,

-against-

**THE CITY OF NEW YORK and DETECTIVE ROBERT
GALARZA, SHIELD NO. 2104,**

Defendants.
-----X

Index No.:

SUMMONS

Plaintiff designates Queens
County as the place of trial.
The basis of the venue is locus
of occurrence.

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 1, 2021

FRIEDMAN, LEVY, GOLDFARB & GREEN, P.C.
Attorneys for Plaintiff
250 West 57th Street - Suite 1619
New York, New York 10107
(212) 307-5800

By: 
NICOLAS BAGLEY, ESQ.

Defendants' Addresses:

**The City of New York
100 Church Street
New York, NY 10007**

**Detective Robert Galarza, Shield No. 2104
One Police Plaza
New York, NY 10038**

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X Index No.:

HENG TEA,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK and DETECTIVE ROBERT
GALARZA, SHIELD NO. 2104,

Defendants.

-----X

Plaintiff, HENG TEA, by his attorneys FRIEDMAN, LEVY, GOLDFARB & GREEN,
P.C. as for his Verified Complaint, alleges the following, upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, was
and still is a municipal corporation duly organized and existing under the laws of the State of New
York.

2. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, its
agents, servants and employees operate, maintained and controlled the Police Department of the
City of New York, including all Police Officers thereof.

3. At all times hereinafter mentioned, on December 2, 2019, Defendant DETECTIVE
ROBERT GALARZA, SHIELD NO. 2104, was employed by Defendant THE CITY OF NEW
YORK, as a police officer.

4. At all times hereinafter mentioned, Defendant DETECTIVE ROBERT
GALARZA, SHIELD NO. 2104, was acting within the scope of his employment as a police officer
with THE CITY OF NEW YORK.

5. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK has established and maintains a Department of Police as a constituent department or agency of the defendant.

6. Defendant, THE CITY OF NEW YORK, is and was at all times relevant herein a Municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant, THE CITY OF NEW YORK, assumes the risks incidental to the maintenance of a police force and the employment of DETECTIVE ROBERT GALARZA, SHIELD NO. 2104 as said risk attaches to the public consumers of the services provided by The New York City Police Department.

7. At all times hereinafter mentioned Defendant, THE CITY OF NEW YORK, Employed DETECTIVE ROBERT GALARZA, SHIELD NO. 2104.

8. At all relevant times, the individual defendant was acting pursuant to their authority as a NEW YORK CITY POLICE DEPARTMENT employee. Notwithstanding their unconstitutional and unlawful conduct, the actions of the individual defendant were taken in the course of their duty and were incidental to their otherwise lawful function as an agent, servant and employee of the New York City Police Department.

9. The Plaintiff, HENG TEA ("TEA") was, on December 2, 2019, and at all times, a resident of the Country of Queens, State of New York residing at 86-04 Grand Avenue, Queens, NY 11373.

CONDITIONS PRECEDENT

10. On or about March 2, 2020, and within ninety (90) days of the occurrence

complained of hereinafter, Plaintiff duly served a Notice of claim upon the City of New York in the manner and mode required by law.

11. At least thirty (30) days have elapsed since the service of the claim prior to the Commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.

JURISDICTION AND VENUE

12. The Plaintiff brings this action in the Supreme Court, State of New York, County of Queens, because the plaintiff has been injured for a sum that exceeds the jurisdiction of all lower courts.

13. The Plaintiff properly designates Queens County as the place of trial. The basis of the venue is the locus of the occurrence.

STATEMENT OF FACTS

14. On or about December 2, 2019, at approximately 2:00 p.m., plaintiff was a lawful resident in his home located at 86-04 Grand Avenue, Queens, NY 11373.

15. At the above specified time and place, without justification or provocation and without a warrant, the defendants, THE CITY OF NEW YORK and DETECTIVE ROBERT GALARZA, SHIELD NO. 2104, assaulted, confined, unduly restrained, falsely arrested, and falsely imprisoned plaintiff TEA.

16. Defendants, THE CITY OF NEW YORK and DETECTIVE ROBERT GALARZA, SHIELD NO. 2104, falsely arrested and falsely imprisoned plaintiff, TEA.

17. Plaintiff TEA was held at the 7th Precinct for approximately eight (8) hours and Central Booking for approximately two (2) days until he was released.

18. Plaintiff TEA was then released from Central Booking.

19. Plaintiff TEA was not allowed to the use of appropriate restroom facilities resulting in severe and permanent urinary and intestinal injuries.

20. The charges against plaintiff TEA are currently pending as the District Attorney continues to adjourn the case.

AS AND FOR A FIRST CAUSE OF ACTION

21. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “20”, inclusive, as though each were set forth at length herein.

22. On December 2, 2019, and thereafter, in the City of New York, State of New York, the Defendants, their agents, servants and/or employees wrongfully arrested, imprisoned, detained, assaulted and battered plaintiff, TEA, without any right or grounds thereof.

23. Defendant, DETECTIVE ROBERT GALARZA, SHIELD NO. 2104, injured and maimed the plaintiff TEA such that he was unable to move freely or otherwise leave the scene without apprising him as to why he was being placed under arrest.

24. Plaintiff was detained, arrested, imprisoned, assaulted and battered by the defendants, their agents, servants and/or employees without probable cause and/or justification.

25. Defendants, through their agents, servants and/or employees, acted in bad faith in committing the aforementioned arrest, detention, imprisonment, assault and battery of plaintiff, TEA.

26. Defendants, their agents, servants and/or employees, intended to confine the plaintiff, TEA, in that plaintiff was conscious of the confinement; plaintiff did not consent to the confinement; and that the confinement was not privileged.

27. At the time of his unlawful arrest, detention and imprisonment, plaintiff, TEA, has not committed or attempted to commit any illegal act or crime.

28. At the time of Plaintiff's unlawful arrest, defendants knew that the aforementioned arrest and detention were false and without probable cause.

29. The said false arrest and false imprisonment cause plaintiff, TEA, to suffer emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation.

30. Defendants placed plaintiff TEA under arrest and falsely charged him with grand larceny and burglary.

31. Plaintiff TEA, was in police custody, was unlawfully detained and falsely imprisoned. The unlawful search and seizure was without due process of law and was done to deprive plaintiff of his rights guaranteed by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

32. It is alleged that Defendants THE CITY OF NEW YORK, DETECTIVE ROBERT GALARZA, SHIELD NO. 2104, their agents, servants and employees, maliciously and intentionally detained, falsely detained, falsely imprisoned and humiliated plaintiff, TEA, in violation of his constitutional rights.

33. Plaintiff TEA was released from custody on December 4, 2019.

34. As a direct result of the above defendants' actions, plaintiff, TEA, suffered and continues to suffer severe mental anguish, humiliation, shame, emotional distress and damage to reputation, some or all of which may be permanent.

35. Plaintiff, TEA, suffered – and continues to suffer – greatly, was and is physically and emotional traumatized by this excessive use of force, detention and imprisonment.

36. The false criminal arrest and wrongful imprisonment of plaintiff, TEA, because of defendant's knowledge of lack of any legitimate cause or justification, were intentional, malicious, reckless, and in bad faith.

37. As a direct and proximate result of defendant's actions, plaintiff, TEA, was deprived of rights, privileges and immunities under the Fourth and Fourteenth Amendments to the United States Constitution and the laws of the City and the State of New York.

38. As a result of the foregoing, plaintiff, TEA, demands judgment against Defendants, THE CITY OF NEW YORK AND DETECTIVE ROBERT GALARZA, SHIELD NO. 2104, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

39. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "38," inclusive, as though each were set forth fully at length herein.

40. The actions of defendants heretofore described constitute an unlawful arrest, unlawful detention, false imprisonment, wrongful imprisonment, assault and battery, all in violation of plaintiff, TEA's civil rights.

41. Defendants deprived plaintiff, TEA, of his liberty in violation of his civil and constitutional rights, as set forth in the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

42. Defendants violated the civil and constitutional rights of plaintiff, TEA, as set forth in the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

43. Defendants actions were undertaken under color of law and would not have existed but for said defendants using their official power.

44. The supervisors and policy making officers of Defendant, THE CITY OF NEW YORK, and its Police Department have, as a matter of policy, failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individual officer engaged in such practices.

45. Defendant, THE CITY OF NEW YORK, and its Police Department, has sanctioned the above described policy and practices through its deliberate indifference to the effect of said policy upon the constitutional and civil rights of plaintiff, TEA, and others similarly situated.

46. As a result of the foregoing, plaintiff, TEA, demands judgment against Defendants, THE CITY OF NEW YORK AND DETECTIVE ROBERT GALARZA, SHIELD NO. 2104, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

47. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “46,” inclusive, as though each were set forth fully at length herein.

48. Defendant, THE CITY OF NEW YORK, hired and retained in its employ police officers, including defendant DETECTIVE ROBERT GALARZA, SHIELD NO. 2104, with the knowledge that said police officer lacked the experience to be employed by the aforementioned defendant, and was, therefore, unfit to be a police officer.

49. Defendant, THE CITY OF NEW YORK, hired and retained in its employ police officers, including defendant DETECTIVE ROBERT GALARZA, SHIELD NO. 2104, with knowledge that said police officer lacked the deportment to be employed by the aforementioned defendant, and was, therefore, unfit to be a police officer.

50. Defendant, THE CITY OF NEW YORK, hired and retained in its employ police officers, including defendant DETECTIVE ROBERT GALARZA, SHIELD NO. 2104, with

knowledge that said police officer lacked the experience to be employed by the aforementioned defendant, and therefore, was unfit to be a police officer.

51. Defendant, THE CITY OF NEW YORK, hired and retained in its employ police officers, including Defendants DETECTIVE ROBERT GALARZA, SHIELD NO. 2104, with knowledge that said police officer had vicious propensities and was therefore unfit to be a police officer.

52. As a result of the foregoing, plaintiff TEA, has suffered serious and severe emotional distress, personal injuries and loss to his reputation.

53. As a result of the foregoing, plaintiff TEA, demands judgment against Defendants, THE CITY OF NEW YORK and DETECTIVE ROBERT GALARZA, SHIELD NO. 2104, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

54. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “53,” inclusive, as though each were set forth fully at length herein.

55. That the aforementioned occurrences, to wit: the false arrest, detainment, unlawful arrest, unlawful and false imprisonment of plaintiff TEA; the assault and battery committed by defendants against plaintiff TEA; the violation of plaintiff’s civil and constitutional rights; and the resulting injuries to the mind and body therefrom; were caused solely by reason of the negligence of the defendants, their agents, servants and/or employees, without any negligence on the part of the plaintiff TEA.

56. As a result of the foregoing, plaintiff TEA, demands judgment against Defendants, THE CITY OF NEW YORK and DETECTIVE ROBERT GALARZA, SHIELD NO. 2104, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

57. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “56,” inclusive, as though each were set forth fully at length herein.

58. Defendants’ conduct towards Plaintiff, was so outrageous and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

59. Defendants acted with the desire to cause plaintiff TEA, mental distress and physical distress and pain, or acted under circumstances known to them which made it substantially certain that they would cause such mental and physical distress.

60. Defendants acted with utter and reckless disregard of the consequences of their actions.

61. As a result of the foregoing, plaintiff TEA, has sustained severe and debilitating physical, emotional and psychological distress, anguish, anxiety, fear, humiliation, and soreness.

62. As a result of the foregoing, plaintiff TEA, demands judgment against Defendants, THE CITY OF NEW YORK and DETECTIVE ROBERT GALARZA, SHIELD NO. 2104, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR AN SIXTH CAUSE OF ACTION

63. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “62,” inclusive, as though each were set forth fully herein.

64. Upon information and belief, defendant, THE CITY OF NEW YORK, through other police officers who are unknown at this time, by their conduct and under color of state law, had opportunities to intercede on behalf of plaintiff TEA to prevent the excessive use of force but due to their intentional conduct or deliberate indifference declined or refused to do so.

65. As a direct and proximate result, Plaintiff suffered injuries and damages described above.

66. As a result of the foregoing, plaintiff TEA, demands judgment against Defendants, THE CITY OF NEW YORK and DETECTIVE ROBERT GALARZA, SHIELD NO. 2104, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

THE ITEMS OF DAMAGE OR INJURIES CLAIMED

67. That by reason of the foregoing, plaintiff, TEA, was severely injured and damaged, sustained personal injuries, bruises, trauma, mental distress and other injuries; his civil rights were violated. Plaintiff was rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some injuries which are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience, and other effects of such injuries, and Plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

68. Plaintiff TEA suffered a deprivation of his civil rights and liberty, was falsely arrested, falsely imprisoned, the use of excessive and unnecessary force was used against him; he assaulted, humiliated, embarrassed, unlawfully detained, suffered emotional harm, shock, loss of reputation in the community, loss of self-esteem, and fear and anxiety as a result of this incident.

69. Plaintiff was deprived of his freedom.

70. As a result of the aforementioned acts, Defendants violated the rights of plaintiff TEA, secured to him under the Eighth Amendment and Fourteenth Amendment of the Constitution of the United States of America, and under 42 U.S.C. §1983.

71. Plaintiff TEA, was caused to be injured, and to undergo pain and suffering as a result of the aforementioned willful, wanton and deliberate indifference on the part of defendants.

72. The above constitutional violations are all actionable under and pursuant to 42 U.S.C. §§1981, 1983, 1985, 1986 and under New York State Law.

73. As a result of the aforesaid, Plaintiff TEA, was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff, HENG TEA, respectfully demands judgment against defendants, THE CITY OF NEW YORK and DETECTIVE ROBERT GALARZA, SHIELD NO. 2104, and requests the following relief: compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction; an award of reasonable attorney's fees, costs and disbursements of this action; such other and further relief as this Court may deem proper under the circumstances.

Dated: New York, New York
March 1, 2021

FRIEDMAN, LEVY, GOLDFARB & GREEN, P.C.
Attorneys for Plaintiff
250 West 57th Street - Suite 1619
New York, New York 10107
(212) 307-5800

By: 
NICOLAS BAGLEY, ESQ.

ATTORNEY'S VERIFICATION BY AFFIRMATION

NICOLAS BAGLEY, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of FRIEDMAN, LEVY, GOLDFARB & GREEN, P.C., attorneys of record for the plaintiff. I have read the annexed

SUMMONS and VERIFIED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the plaintiff is because plaintiff resides outside of the county wherein your affirmant maintains offices.

Dated: New York, New York
March 1, 2021



NICOLAS BAGLEY, ESQ.